

THE
PENNSYLVANIA JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY.

PUBLISHED QUARTERLY

UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR ALLEVIATING
THE MISERIES OF PUBLIC PRISONS," INSTITUTED 1787.

"The separation of one prisoner from another is the only sound basis on which a reformatory (prison) discipline can be established with any reasonable hope of success."—*Fifth Report of Inspectors of English Prisons.*

JULY, 1852.

PHILADELPHIA:
E. C. AND J. BIDDLE,
SOUTHWEST CORNER OF FIFTH AND MINOR STREETS.
LONDON: CHARLES GILPIN.
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Isaac Ashmead, Printer.

VOL. VII.

TERMS:—ONE DOLLAR A YEAR IN ADVANCE.

NO. III.

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IMPORTANT AND VALUABLE DOCUMENTS.

The Seventeenth Report of the Eastern State Penitentiary.—A few copies of this document, which includes the *elaborate tables* of the medical officer—showing the *sanitary condition* of the institution from its commencement.

ALSO,

Numbers 1 and 2 of volume I. of this Journal—the *first* containing a Review of the History of Penal Legislation in Pennsylvania, and several plates, illustrative of prison architecture; and the *second* containing a beautiful steel portrait of Mrs. Elizabeth Fry, and a view of the New Prison at Pentonville, near London, and an account of its discipline and results.

Either of the above may be had on application to any member of the Acting Committee.

NOTICE.

☞ Communications and orders for this work, may be addressed “*Editor of the Journal of Prison Discipline*,” care of the publishers, No. 6, South Fifth Street, Philadelphia.

☞ Officers of State, Inspectors, or Wardens of Penitentiaries, Keepers of Common Gaols, Houses of Correction, &c., Superintendents or Physicians of Insane Asylums, (whether public or private, and whether for paupers or pay-patients,) officers of Houses of Refuge, Police Magistrates, and others who may be in possession of, or have access to reports or other documents bearing on prison discipline, insanity,

juvenile delinquency, police regulations, pauperism, &c., &c., will confer a particular favour by forwarding to the above office copies of such publications for use or notice in this Journal. All such attentions will be gratefully acknowledged, and cheerfully reciprocated.

RECENT NOTICES.

From the North American and United States' Gazette.

We have received from Messrs. E. C. & J. Biddle the last number of the Pennsylvania Journal of Prison Discipline, which is published quarterly, under the direction of the Philadelphia Society for alleviating the Miseries of Public Prisons. A glance through its pages shows what is well understood—that it is a highly valuable periodical, communicating much and various important information upon the subject of which it treats. It is the only publication of the kind in the country, is certainly a very much needed one, and ought, therefore, to be well sustained by the public.

([See 3d page of Cover.](#))



*BORN AT
GUNDENHAM
MANOR
15 DEC.^R 1792.*



*DIED IN
PHILADELPHIA,
AMERICA
28 MARCH 1852.*

ERRATUM.

On page 102, fourth line from the top, for Russian read Prussian.

THE
PENNSYLVANIA JOURNAL
OF
PRISON DISCIPLINE.

VOL. VII.—JULY, 1852.—No. 3.

ART. I.—JOHN HAVILAND.

OBITUARY NOTICE.

It is not long since the Philadelphia Society for Alleviating the Miseries of Public Prisons recorded the decease of the last of its founders; the survivor of that little group of enlightened and benevolent men, who, in the year 1787, commenced the work of prison reform in Pennsylvania. The society has now to add to the roll of the departed, the name of one who is to be henceforth associated with the history of that reform, as the chief pioneer of its architectural progress. They who, in wisdom and the love of their kind, conceived the morality of our discipline, and their fellow-laborer who faithfully and earnestly and successfully sought to give to it an outward embodiment adapted to its complex designs, now sleep together. Our readers will participate in the interest with which we recall some of the leading incidents of a life so closely connected as was that of John Haviland, with the great subject to which our pages are devoted.

Mr. Haviland was born on the 15th of December, 1792, in the county of Somerset, England. He was the son of James Haviland, of Gundenham Manor, in that county, and of Ann, daughter of the Rev. Benjamin Copley,

of Ide in the county of Devon, Rector of Dodbrook. His academic studies were completed in his native county; and as his tastes, even in boyhood, inclined him towards the profession of an architect, he removed to London, and became a pupil of James Elmes. His preparatory training under that gentleman had been scarcely finished, when his enterprise was solicited by inducements from abroad. A sister of his mother had married an officer of distinction in the Russian naval service, who was then Minister of Marine, under the Emperor Alexander, Count Morduinoff. As this gentleman was disposed to promote the advancement of his young relative, the latter hoped, through his influence, to obtain an appointment in the imperial corps of engineers, and promptly accepted an invitation from him to visit St. Petersburg. Upon arriving in Russia, and considering the various motives presented for the guidance of his future career, particularly the reports which had been received of the state of architecture in this country, and of the opening existing here for professional skill and activity, Mr. Haviland, in accordance with the advice of his friends, resolved to embark for America. He was furnished with letters of introduction, amongst which was one from General Von Sonntag, who had been a resident at Philadelphia, and whose sister Mr. Haviland subsequently married. He landed in this city in September, 1816.

With this portion of our sketch, there are associations which deserve to be mentioned, not only because of their intrinsic value, but because they are in beautiful harmony with later events, and must have influenced, in some degree, the thoughts and feelings of our architect. When the philanthropist Howard was at Cherson, in 1789-90, he formed an acquaintance with Admiral Morduinoff, then chief of the Black Sea fleet. Their relations soon ripened into those of an intimate friendship, which was cemented both by the amiable qualities of the Russian officer, and by his warm sympathy with the feelings and plans of the reformer. When the latter fell a victim to the infection to which he had exposed himself, his last moments were attended by Morduinoff. The memory of this honorable friendship was reverently cherished by the survivor, who loved to dwell upon the discoveries and designs of the great Englishman; and we cannot doubt, that the young Haviland became an auditor of precious reminiscences. It is certain that the friend who shared the last sympathetic throb of the heart of Howard, was he whose hand was extended to guide towards our country the architect, under

whose directing skill, was to arise the most complete embodiment which the world had seen, of Howard's reform.

It was not long after his arrival here, that Mr. Haviland found an opportunity for the exercise of his professional skill. Amongst his first public works was the Presbyterian church on Washington Square; an edifice which, compared with the latest of our churches, ranks well with respect to the chief conveniences of such a structure; and which, if judged by the buildings existing here at the date of its erection, gives a very favorable idea of the young artist's capability, and of the liberal scope of his mind. It is not, however, our purpose to review his works, except in connection with our penal institutions; towards which he soon found himself directed by the wants of his adopted state. After a series of appeals to the legislature, and finally to the public, the Prison Society, acting in conjunction with the officers of our prisons, had succeeded in obtaining (in 1818) the enactment of a law, authorizing the construction of a prison for convicts, at Pittsburg, in the western part of the State. Amongst the plans which were offered to the judgment of the commissioners, appointed to superintend the construction, was one presented by Mr. H. We regret not to be able through an inspection of this plan to exhibit the earliest conception of his mind upon such a subject; the preference was given to another design, and his drawings are not within our reach. The choice of the commissioners was unfortunate, as there will be occasion hereafter to notice.

The insufficiency of the prisons in the eastern part of the State, became the motive to further applications to the government; and in the year 1821, an act of the legislature provided for the erection of a State Penitentiary, at Philadelphia. Mr. Haviland again entered into the competition of architects, and was successful in obtaining and maintaining the direction of the work, not only during its early progress, but until the completion of the last block of cells. As it is by this institution, that his reputation has been most widely extended, it may not be inappropriate to recall some of the peculiar circumstances in which his skill was exerted.

We are here reminded of the just observation of an English author, that "innumerable are the services to truth, to justice, or society, which never can be adequately valued by those who reap their benefits, simply because

the transition from the early and bad state, to the final or improved state, cannot be retraced or kept alive before the eyes. The record perishes. The last point gained is seen; but the starting point, the point *from* which it was gained, is forgotten." This remark is the more impressive when applied to human works upon any subject which, from its nature, tends always to an improvement keeping pace with the special experience, and with the general enlightenment of a community. That which costs an effort to the most enterprising inventor of to-day, will shortly become familiar; then the basis of new reforms; and finally, will rank only as one of the earliest of a long series of developments. The tendency to generalize, and to mistake resemblances which are easily seen after a contrivance has become familiar, for the real succession of ideas by which a reformer was led to his discoveries and plans, has always had the effect to conceal from posterity the true difficulties of any achievement in their behalf. Hence the influence properly attributable to the intervention of an individual in the affairs of society, cannot be accurately judged, unless there be first considered the state of the case as it appeared to his immediate predecessors, and his contemporaries. It will of course be impossible, within the limits allotted to this sketch, to do more than indicate the topics to which the reader's attention is invited; yet enough may be said to lead him easily to the principal grounds of the conclusion which the writer has in view.

The visits of Howard to the prisons of Europe, had brought to public notice not only the miserable condition of the discipline in most of them, but also many of their principal defects of construction. The modifications of interior management first suggested for convicts in England, and subsequently enlarged and carried into successful operation in Pennsylvania, required great alterations of material structure. The design was to pass from a state of things, in which there was an indiscriminate association of prisoners without labor, without instruction, without government, almost without restraint, except that of walls, chains, and the brutal tyranny of the strongest or boldest among the prisoners, to a state in which separation, good order, cleanliness, labor, instruction, and ready and continual supervision should be maintained, within the limits of such fiscal economy as public opinion and resources rendered expedient. The earliest and most noted experiments were made at Horsham, Petworth, and Gloucester, in England; and in the old Walnut street gaol, at Philadelphia.

The record of these attempts fortunately still remains; and it would be superfluous to discuss their want of adaptedness to any large scheme of separate discipline. The next remarkable effort was at Pittsburg, where a circular prison was erected, so illy suited to its objects, that in less than ten years after its completion, it was demolished. The next step of progress was the erection of the Eastern Penitentiary; and it must be obvious, that much was involved in the success or failure of its architect. There was not in all Europe a building suited to the objects of the contemplated work. Since the alteration of the Walnut street gaol, there had been more than a quarter of a century of observation and reflection, and discussion; and the principal monument of these, visible amongst ourselves, was the Western Penitentiary, which had not yet been tried, and which was at that time recommended not only by the professional judgment which devised it, but by what is often more influential, the prestige of government favor, and public expectation. It was in such circumstances, that Mr. Haviland undertook to solve the problem entrusted to him. It is probable, that he scanned, as he was bound to do, all the resources of his profession, as far as these had been manifested in structures within reach of his means of information. It is probable that he felt the importance of his position, and that he inquired anxiously; and that he labored intently upon the materials of design, availing himself of light from every quarter; but let us judge of his procedure by its result. The chief objects of prison architecture, sought by the friends of separate discipline, were for the first time attained. The impression upon the public mind was so remarkable, that it must fix the attention of the most careless reviewer; and we have, moreover, been furnished with a test of unusual value, by which to determine how far our architect comprehended his position. The British government meditating a change of penal discipline, and the French and Prussian governments with a like design, sent commissioners to the United States, to examine the penitentiaries. Those gentlemen had previous knowledge of prison architecture in Europe; and they visited the prisons of greatest reputation in America; and they found our discipline administered with a success unparalleled. When they returned to their respective governments, the plans which they reported for adoption, were essentially the same with that of the Eastern Penitentiary. During their visits to Philadelphia, they received from Mr. Haviland, communications of his experience, which were made to them with the generous frankness which eminently characterized him as a

professional man. Some idea of the impression produced by his work, and by his liberal zeal for the promotion of good construction abroad, may be formed from the following translated extract, from a letter addressed to him by the French commissioner, M. Blouet, himself a distinguished architect. It accompanied a copy of his official report, presented in the joint names of himself, and his associate commissioner, M. Demetz.

“M. Demetz and myself request your acceptance of a copy of the report which we have made to our government at the termination of the mission, upon which we visited the United States to examine your penitentiary system. As you may see by our report, the establishments constructed by yourself have been the chief source from which we have drawn; and they are also the models which we propose as the best, and the most perfectly conceived for satisfying the physical and the moral conditions of penitentiary reform. We hope that you will accept the particular expression of our sincere compliments, upon the very honorable part which you have had in the erection of establishments so remarkable in every point of view.

“For myself, sir, as an architect, I cannot too often repeat to you that both the design, and the execution of your works have interested me in the highest degree; and it gives me real pleasure to offer you my sincere thanks for the obliging manner in which you have furnished me with the information needed for my studies in your interesting country.”

Such testimony is the more impressive, when we remember that it comes from a gentleman who had not only exhibited convincing proofs of his fitness for the responsible duty to which he was called by his government, but who had at the same time shown his freedom from the constraints of mere imitation. As justly remarked by M. Moreau-Christophe, the plan of Mr. Haviland was not servilely copied; but while endeavoring to accommodate some of its details to peculiarities of religion, national character and climate, M. Blouet rendered his hearty tribute of acknowledgment, alike honorable to himself and to its object, for the reform which he had witnessed in the main elements of the design.

The most striking mode of illustrating the facts, is to assemble plans of the chief prisons erected before the Eastern Penitentiary, and to compare them with the plans of separate prisons for convicts, since constructed. It will be

apparent at the first glance, that there has been a sudden and radical change, and that the Eastern Penitentiary is the head of the new series. Even in many particulars, in which the old and the new forms may exhibit a resemblance, there will be found an essential difference in the principle of the design; the same feature being found to have a different object, or a different relative value.

The influence of the reputation acquired by such success, was immediately felt in the enlargement of Mr. Haviland's sphere of professional exertion. At the same time that he was occupied with the completion of the series of cell-blocks at Cherry Hill, he was also engaged upon several other similar works. The Western Penitentiary having been proved to be unsuited to its objects, he was invited, about the year 1834, to superintend its reconstruction in conformity with the plan of the Eastern. The authorities of the county of Alleghany requested his direction of the prison of that county, then about to be built; and he also drew the plan of its Court House. The State Penitentiary of New Jersey, was built by him after the model of Pennsylvania; and he also designed and superintended the erection of the prison of Essex county, in New Jersey, and the Halls of Justice, (the city prison,) of New York. The nearly simultaneous direction of these buildings at places very remote one from another, required an extraordinary energy and power of endurance. In 1841, the prison of Dauphin county was constructed by him at Harrisburg, the capital of the State; and it was at that time generally regarded as the best example in this country of a small county jail. It would be unfair to judge of the details of the preceding works, by a comparison of them with the latest and most costly specimens of this class of buildings. The English government at a great expense, and with a generous liberality of encouragement, of which there was no parallel in the United States, procured a series of experiments upon the ventilation of large buildings, and upon the fitness of various kinds of walls for the necessities of our discipline; and authorized the construction of a model prison, upon which were lavished the best science and art within reach of the commissioners; and the result was naturally an improvement in the details of contrivance, as well as in the material execution of these. The heating, ventilation, means of prompt communication, and other particulars of security and comfort were established by methods superior to any which had been previously in use in this country. The yards for exercise, which as

first tried at Cherry Hill, were found to shade too much the cells on the ground floor, were detached and placed in the spaces between the blocks. The warden's dwelling, which in the Eastern Penitentiary had been erected on the circumference of the radii, at a distance from the centre of supervision, (because of an original intention to have eight blocks of cells, instead of seven,) was fixed in its more suitable relative position. These changes, however, some of which were recommended by Mr. H. himself to the foreign commissioners who visited us,¹ do not diminish the weight due to the fact, that upon the construction of the Eastern Penitentiary, there was a sudden change of model; and that that establishment was the type of the new form, as respects essential features.

Notwithstanding the pride reasonably inspired by the flattering evidence of his success, it is one of the most creditable reminiscences connected with the professional career of Mr. H., that instead of resting upon what he had accomplished, instead of reluctantly yielding to the evidence of progress in Europe, he was prompt to seek and to employ in his own later designs, whatever new details he found to be sufficiently recommended by theoretical or experimental evidence. The funds at his disposal for the erection of county jails, were not adequate to the most perfect elaboration of his own, or other conceptions; but it may be seen that when called upon, as he was not long after the completion of the Dauphin county prison, to build one with forty cells for the county of Berks, in Pennsylvania; he availed himself of the opportunity to introduce some of the most recent conveniences of arrangement. In Lancaster county, where his services were next required, he exhibited the same professional interest. The prison of this county had not been long occupied, when he was summoned from his career of public usefulness. He died suddenly at his residence in Philadelphia, on the 28th day of March last.

We have, though necessarily in a brief and imperfect manner, adverted to the peculiar claims of Mr. Haviland, to the grateful recollection of every friend of the separate discipline; because in the progress of events, it may have happened that some of our readers have lost sight of that record of the "early and bad state," which is requisite to judge rightly of his merits as the leader towards the present "improved state" of prison construction. Those who shall hereafter witness signal triumphs of benevolence and skill, to

which his labors have opened the way, may—and if the fortune which has awaited even the most eminent of reformers shall not be reversed, probably will—fail to conceive the full measure of his contributions towards the crowning result; but while a tradition survives amongst his associates in prison reform, and their successors in Pennsylvania, his name will not cease to be mentioned with honorable distinction.

Amongst the memorials which he has left in other departments of his art, we might refer to the United States Naval Hospital at Norfolk, Virginia; and the Pennsylvania State Lunatic Asylum, recently finished at the capital of this State; both of which institutions manifest in a high degree the industrious preparation, the sound judgment, the economy, and the practical skill, which he employed upon his designs. Regarding his function as that of an exponent of the knowledge which enlightened observation had gathered from experience, his first step was to acquaint himself with the best conceptions of those for whom he was to interpret by physical structure; and he wrought with fidelity to express those conceptions by the most fitting external fabric; but our limits compel us to abstain from a notice of these and similar works.

In conclusion, it must be added, that while witnessing the establishment of his reputation, in a manner rarely exemplified in the history of his profession in modern times, especially where the object has not been to minister to the wonder and delight of the multitude, Mr. Haviland maintained a singular modesty of deportment and of speech, even amongst those who knew most intimately the interest which his success had excited in his own bosom. He was frank and amiable in his intercourse, and liberal in the instruction of those who sought his advice upon the important subject of his principal thoughts. He has left to his survivors and to posterity the example of an unpretending, but eminently useful career.

At a meeting of the Philadelphia Prison Society, held soon after his decease, the President, in appropriate terms, announced the decease of Mr. Haviland; and the following resolutions were unanimously adopted, and ordered to be printed in the Society's Journal.

Resolved, That the members of the society have learned, with sincere regret, the loss of their late fellow-laborer, John Haviland, whose efforts to develop the architecture of the separate system of imprisonment, have contributed greatly to its convenient administration in Pennsylvania, and to the establishment of the principal features of its methods of construction in other parts of the world in which it has been introduced.

Resolved, That the society desire to record their appreciation of the zeal and fidelity with which their deceased friend sought to promote by suitable architectural means, those enlightened and humane opinions upon which the separate system is founded; as well as to introduce where the opportunity was afforded to him, for its better administration, whatever improvements were suggested by experience, whether at home or abroad.

Resolved, That the President be requested to communicate to the family of the deceased, the sincere and respectful sympathy felt by the members of the society, in relation to the recent bereavement.

ART. II.—THE PENNSYLVANIA SYSTEM.—DR. GIVEN'S REPORT.

Notwithstanding the simplicity and unity of the principle on which the Pennsylvania system of prison discipline is based, there is often a vagueness of opinion and a looseness of expression concerning it that surprises us. What is the principle? It is CONVICT-SEPARATION—neither more nor less. We hold, with the inspectors of the English prisons, that “the separation of one prisoner from another is the only sound basis on which a reformatory prison discipline can be established with any reasonable hope of success.” We believe the reformation of prisoners can be, and in very many instances has been, accomplished *in consequence of such a separation*, which would not have been, and could not be accomplished without it.

Some persons have no faith in the reformation of convicts, under any process. With such the only inquiry is for the cheapest method of imprisonment, without reference to moral or physical consequences. Some are very credulous, and look upon the worst rogues as quite reclaimable under the influence of personal kindness and Christian counsel. We apprehend that if the probability of prison-reformation may not be determined precisely by the degree to which the offender is separated from criminal associations and suggestions, it depends mainly upon it. And it is our deliberate and long-settled conviction, that (other things being equal) the best appointed system of discipline will be of very little avail in its reformatory power, where convict-association, in any form or degree, is tolerated. This is not a partisan opinion. It has been entertained and expressed by many who are by no means committed to the separate system, as such. There is an obvious fitness in the idea, which can neither be gainsayed nor resisted.

We have said that the fundamental doctrine of the Pennsylvania system of prison discipline is embodied in one compound word—CONVICT-SEPARATION.—How can we conceive of a “*modification*” of this elementary principle? It must be adopted as a whole or rejected as a whole. The structure of the building, in which the separate principle is carried out, may be modified. The method of proceeding in the institution, as it respects instruction, whether in letters or trades, or as it respects privations, indulgencies and punishments may be modified. The cells, the occupations, the diet, the mode of heating and ventilating, &c., may all be modified, but the principle of separating the convicts one from the other, is, or it is not, the basis of the system. It is not susceptible of modification. If separation is the principle, it is one thing,—if association is the principle, it is another thing.—The *degree* of association or of separation, is not involved.

When, therefore, we are told of “a necessity for modifying, to a certain extent, the Pennsylvania system, by allowing a certain class of convicts to be associated” for any purpose, or for any period of time, the phraseology is open to misapprehension at least, if not to animadversion.

The phrase “*modifying* to a certain extent” is doubtless inadvertently used in such cases for the phrase “*abandoning* to a certain extent.” Words are significant of ideas, and ambiguity in the former, necessarily leads to ambiguity in the latter. If we speak of the associate system, as “modified” by the occasional separation of a stubborn class of convicts, or of the separate system, as modified by the occasional association of an imbecile class, we soon confound association and separation, and actually have neither the one nor the other. We apprehend that this is the very position to which some of the opposers of convict-separation would not be unwilling to see it brought. Indeed, some who profess to be staunch advocates of separation, have conceded (inconsiderately, as we think) that each plan has its own advantages, and that the best system would be the product of a combination.

As at present advised we cannot consent to this view. Few evils arise, under any system of government, for which there is not a choice of remedies; and if it is made evident that under the application of a sound principle of prison-discipline, cases occur in which the legitimate ends of punishment

are defeated, or at least not answered, the first question would be whether these cases are numerous and important enough to impair our confidence in the principle; or whether the exceptions are not necessarily incident to any general system, and such as cannot be provided against; or whether the remedy, if practicable at all, may not be applied without any infringement of the general principle. A compromise between two methods of convict management, so radically and essentially diverse as separation and association, seems to us entirely fanciful.

These general observations must serve to introduce a very brief notice of the Report of the Physician of the Eastern State Penitentiary for the six months ending July 1, 1851. That day closed seven years of laborious and faithful service by Dr. Given in this important institution. His reports, during that period, have been frequently noticed in the pages of our Journal, and have contributed essentially, not only to the improvement of the particular institution under his care, but to the general interests of humanity. Few if any documents of this class, embody a larger amount of valuable information, or are entitled to more consideration.

The author not being prepared to serve the interests of a party or a clique, nor to defend a favorite theory, his reports have uniformly taken independent ground, and must be regarded as the honest record of the results of professional experience and observation.

We understand the present and final report of Dr. G., as unequivocally and emphatically favorable to *convict-separation*. That there are some prisoners on whom it bears with peculiar severity is a matter of course. No species of punishment is exempt from such inequalities. They are less prevalent, however, under the separate discipline than under any other, from the very fact that the isolation of the prisoner from his fellows, allows us to vary the minuter conditions of the discipline in peculiar cases, without exciting murmuring and discontent among less favored parties. That a relaxation of rigid discipline in an individual case, no matter how peculiar, if it becomes notorious works wide-spread mischief, is fully shown in the experience of the English prisons.²

We do not understand Dr. Given to maintain that the class of convicts, whose mental weakness unfits them for the discipline of separation, would

be any better off in a congregate prison, unless they were allowed “to converse with hardly any restriction.” So that we are left to conclude, that some peculiar method of treatment, embraced in neither of the prevailing systems must be devised to suit the specific case of weak-minded culprits, in a separate prison, or we must expect them to become deranged. Now we humbly conceive, that the remedy for the supposed grievance in such cases is in the hands of the court, and should be applied in the terms of the sentence, and not in the process of its execution. The mental vigor of a culprit is as legitimately a subject of investigation, as his moral habits and physical constitution. If he borders on that state of imbecility which would exempt him from moral responsibility, the shade of guilt in which he is involved will be scarcely perceptible, and the punishment would of course be proportionably light. If on the other hand, the character and method of his crime indicate ingenuity in contriving and vigor in executing his criminal purposes, though he may be below par in his intellectual capacity, he must take his chance with other offenders, who may be better able to endure the retribution than himself. It is so all the world over. The punishment which many sins carry in themselves, does not adapt itself very nicely to individual constitutions and temperaments. One slave of the intoxicating cup may have far greater powers of resisting the temptation to indulgence than his comrade, yet they are found wallowing in the same gutter. Men of limited capacity have a much harder struggle for their daily bread than their more capable neighbors, but in the event of their feloniously taking what does not belong to them, we do not find special laws are enacted to meet their case. So in families, schools, and larger communities, general laws are established which operate unequally, but are on the whole salutary and wise; and so must it be in the discipline of every prison. The same degree of restraint, privation or punishment bears much more severely on some than on others, and while humanity requires us to alleviate, as far as possible, the miseries of public prisons, it can hardly expect us to forego the eminent advantages of a system of discipline, because it does not adapt itself to every grade of intellect and education. No part of the machinery of civil government is capable of such a nice adjustment.

But assuming that provision should be made for the necessities of convicts, who lack ordinary mental vigor, and whose condition is easily detected by

an experienced observer, we have the unqualified testimony of Dr. G., that with such provision, the Pennsylvanian system intelligently administered for moderate periods is entirely safe for mind and body. This opinion, after seven successive years of close, daily observation, by a resident physician, is certainly very conclusive. As to the phrase, “moderate periods,” it is well known that our Journal has uniformly advocated a reduction in the terms of imprisonment for by far the larger portion of crimes,—connected however with efficient checks upon the pardoning power.

But Dr. G. finds among the convicts of the Eastern State Penitentiary, as he would find in any other similar prison, “a certain proportion who have not sufficient mental vigor to resist the enervating tendencies of the discipline.” Upon examining the report for a more particular description of the class, he had in view, we find, that “in many of them the mental deficiency is so slight, as hardly to challenge casual observation, or to prevent them from following successfully the ordinary pursuits of life.” Dr. G. would not, therefore, exempt these persons from responsibility for their crimes. But how shall they be treated in a separate prison? What is needful to “enable them to resist the enervating tendencies of the discipline,” or in other words, how, in administering the discipline, shall we provide for that lack of mental vigor which exposes them to suffer under it? Dr. G. replies, “By sufficient social intercourse with qualified officers to preserve the natural strength of their minds.” Is this better than “associating them in workshops during the day under vigilant supervision, as in congregate prisons?” Dr. G. replies, “Yes, infinitely preferable.” Why then is not this simple counteracting agency employed, wherever the evil is supposed to exist? Dr. G. replies, “The expense of such an arrangement will, I fear, render it impossible.” And what is the expense? The report does not furnish any estimate, nor have we the means of forming one. But of one thing we feel confident, viz., that if the addition to the corps of officers of one or two men of suitable qualifications for the purpose, would be the means of perfecting the system of punishment, or of securing, in a higher degree, the humane purposes of the government in inflicting it, it will not be withheld. We should be slow to believe such a measure would fail, for so paltry a consideration as one or two thousand dollars a year, which would be the outside of the expense.

Suppose it were clearly the duty and interest of the government (and its duty is always its interest, as it is that of individuals) to provide for the unfortunate class of convicts to which Dr. G. refers, it would become a question how far it would be needful to abridge the average term of imprisonment at present suffered, in order to avoid the mischief which his report discloses. For it will be observed, that there is quite a difference of opinion as to the time within which the supposed injurious effects of seclusion are developed. Even the opponents of separation have generally regarded a sentence of from twelve to eighteen months as entirely safe. Dr. G. very properly considers the age of the convict as entitled to much consideration in determining the period of his confinement; and we should be quite disposed, at first, to fall in with his opinion, that “unless for the gravest offences, the sentence of minors should seldom exceed a single year;” and yet when we look around us and observe the boldness, the ingenuity and the malignity which often characterize the criminal acts of minors in our times, we can scarcely persuade ourselves that extraordinary lenity could be safely shown to them. A severer discipline in an institution that should receive them at an earlier stage of their career, might often check their criminal propensities, and put them upon a praiseworthy course; but when they become reckless of life, and property, and public peace, and boast themselves in feats of iniquity which matured convicts would scarcely attempt to excel, we should be slow to relax the rigour of punishment, except in cases of manifest infirmity of body or mind.

“In the second year of imprisonment, the bodily and mental vigor of convicts generally begins to decline, though they may struggle on for an indefinite period, without having any actual disease developed. In all cases, but more especially when the sentences range between two and ten years, the prisoner should be closely watched; and when the slightest symptom of failing strength appears, he should be immediately put to some outdoor employment, and there kept until his health would be re-established, when he could be again returned to his cell. If this principle would be strictly acted upon, it would render the longest sentence comparatively harmless.”

We are gratified with such clear and unequivocal testimony to the safety of convict-separation; for we look upon the resort to out-of-door exercise, in

special cases, as so perfectly practicable and so entirely in keeping with the principle of the system, that we could scarcely reckon it as a condition or exception. It is of the same character with a precaution respecting air, apparel, bathing, &c. Indeed we do not suppose Dr. G. himself has a particle of doubt, that all needful out-of-door exercise can be given to every convict whose health requires it, as easily and as consistently with the most rigid separation as an extra blanket, or a new article of diet.

It will be observed that in the extract just made from Dr. G.'s report, the *second* year of imprisonment is designated as that in which the bodily and mental vigor of convicts generally begins to decline, and he also mentions those whose sentences range from two to ten years, as "requiring to be closely watched." From which we infer, that in his opinion there is little danger to be apprehended from the *first* year's seclusion; that in the *second* year there is no danger to be apprehended to the great mass of prisoners, but only to those who have "not sufficient mental vigor to resist the enervating tendencies of the discipline," and who generally begin at that period to decline in body and mind; and as to convicts whose "sentences range from two to ten years, they should be closely watched," &c.

Our general impression of the weight of authority on this subject, at home and abroad, would coincide with the opinion here expressed; but upon turning to the fable which is annexed to Dr. G.'s report we find, to our surprise, that in seven of the eight insane cases of 1851, the average period of prison-life at which the disorder appeared, was less than eight months; viz., one at four months, one at five, one at seven, one at eight, two at ten, and one at eleven months. In the eighth case the development of disease was postponed for three years and more! Only two of the eight were minors; five were whites, two mulattoes, and one black.

We need not question at all the soundness of Dr. G.'s opinion, nor the correctness of his facts. The conclusion to which they unite in constraining us however, is that the cause of insanity is not well-assigned. It is quite possible that the present condition of the prisoner, with all its antecedent anxiety and excitement and its prospective severity, combine to disclose, or give form and definiteness to a morbid condition of mind or body or both, which might not have occurred at all had he escaped detection or

conviction; or which might not have taken that specific form under a different system of discipline; or which might be corrected by seasonable and judicious attention. That symptoms of a deranged state were discoverable so soon after commitment, and without any peculiarly exciting cause, seems to forbid the idea of attributing it wholly or chiefly to a denial of convict-association. And we apprehend, that if those very cases were at once transferred to Auburn or Sing-Sing, without the slightest change in their mental or bodily state, the parties would take their places at once in the shop-gang, and render their master-contractor as good an account of a day's work as any of their comrades! They would be just as insane there, as in the Eastern State Penitentiary, but their eccentricities would not be likely to receive special investigation or care, and hence would never be reported as insane cases. The reports from congregate prisons fully warrant this position.

The careful reader of Dr. Given's report cannot fail to see that his humane and honorable sympathies have led him, as we have already intimated, to overlook the inevitable necessity of inequalities in the operation of general laws. If he says, "we can rest satisfied to restrict the application of our system to those to whom it is applicable, I believe there will be quite as little insanity among them as if they were associated." But to whom is it applicable? To all, except those whose mental character renders it unsafe to subject them to it. How many of this class are there? Why it is so small as to "admit of the most accurate supervision," so that "the corrupting influences of association," (if adopted,) "will be materially diminished." But what is the number in units, tens or hundreds? Why last year it was eight in an aggregate of four hundred and forty-six! And may we regard this as the "certain proportion of convicts, who have not sufficient mental vigor to resist the enervating tendencies of our system?" Eight in four hundred and forty-six!

Of this class of convicts, more or less, it is said, that "an experienced observer will readily detect many of them on the day of their reception, and a few weeks' observation will generally suffice for the discovery of the remainder." If we bring this remark to bear on the eight cases of last year, we shall be compelled to circumscribe its application considerably. Two of them "were decidedly insane when received." Of the remaining six, "one a

mulatto, had been once or oftener insane before imprisonment;" his mother had also been insane, and he was syphilitic. Two others were not of the class which we are considering, for it is expressly stated that they "had not imbecile minds," though "both had received a fracture of the skull, and were thus doubly predisposed to insanity." Of the three that are left, one "was not considered actually defective in mind," and of course he would not have been put among the class "who are deficient in mental vigor to resist the enervating tendencies of the system." Nevertheless, his mind "was of such a character, that shortly after his reception, it was predicted that he would go deranged before the expiration of his sentence." What that "character" was we are not told, nor is it needful for our present purpose to know. Then of the other two it is expressly said, that they were "considered as presenting no striking mental peculiarity on admission, either of strength or weakness." One of them was three years and one month in prison, before exhibiting any marks of mental derangement, and the other ten months. If we do not misunderstand the report then, not one of the last year's insane cases answers to the description of that "certain class of convicts, who cannot be placed under the usual isolation, without the greatest risk of insanity supervening."

Perhaps we construe the language of the report in this connection too rigidly, for in another section, the "mental deficiency" of many of these same persons "which an experienced observer will readily detect on the day of their reception, or a few weeks after," is described as "so slight, as hardly to challenge casual observation or to prevent their following successfully the ordinary pursuits of life." We think it would be very difficult to modify the discipline of a prison, so as to provide for such minute diversities of mental power among convicts. They will have to take their chance with the other rogues, we fear.

Although Dr. Given in one passage of his report speaks of "a modification to a certain extent of the Pennsylvania system," and "of association in workshops," and "of associated labor," we are happy to find that the general tenor of the document sanctions no such view. On the contrary, free, vigorous and timely "out-of-door exercise," which is perfectly compatible in any form and degree with the principle of our system, is clearly in his opinion, the grand panacea for prison-ills. The gardener and waggoner, at

the Eastern State Penitentiary are accustomed to employ as assistants, such convicts as need exercise in the open air, and an officer is specially appointed to “attend invalid convicts, and give to them at least one hour daily of out-of-door exercise, combined with improving social intercourse.”

It is obvious that these precautionary measures may be adopted to any needful extent, without any violation of our cardinal principle. Indeed, we see no evidence in the report before us, that they have not been employed during the past year, to the full extent which the exigencies of the institution have required. Not a case is mentioned or hinted at, in which suffering has been endured, or danger incurred for want of them. Indeed from the description which the Doctor gives of the position and treatment of a convict in our Penitentiary, at the present time, we can scarcely conceive of a system of penal suffering being administered with more judgment, care and lenity. In speaking of a keeper’s interpretation of the nature and responsibility of his office, Dr. G. says: “Aware of the vast power which his official position affords for influencing the prisoner, for good or evil, his physical, his intellectual, and his moral character are subjected to close scrutiny; and the nature of his work, the amount exacted of him, the extent and character of his social intercourse are regulated accordingly. If, after due experience, it is found that the employment of the convict is not adapted to his strength or capacity, the fact is reported to the warden, and intelligent suggestions offered as to his future treatment. If the prisoner’s moral conduct proves perverse, he is subdued by kind remonstrance, when for similar breaches of discipline he would formerly have been punished; and if symptoms of insanity, or physical disease portend, the deepest interest is felt, and every possible exertion made to avert the threatened evil.”

We know not what more could be asked, if the idea of punishment is not to be entirely foregone.

Indeed, we cannot avoid the conviction that in one particular at least, a pernicious indulgence is granted; viz., the use of tobacco. Dr. G. anticipates “quite as much censure as approbation,” will be bestowed on this item of treatment, and he may think himself very fortunate, if the scales are so nearly equipoised as that. For ourselves, we cannot qualify our

condemnation of the practice on every ground. So far as the Dr.'s argument rests on strength of habit, it would be equally cogent for the use of intoxicating liquors; and we must suppose he speaks ironically, when he refers to "legislative chambers, halls of justice, or even our pulpits," as furnishing invariably safe precedents in moral conduct. Convict-life is, and of right ought to be a life of privation; and the wise disciplinarian takes advantage of this period to cross the prisoner's vicious inclinations at every point, and thus connect the process of punishment with the process of reformation. Dr. G. has seen "a strong stubborn man beg for tobacco with tears in his eyes." We have seen such a man beg, in like manner, for a drink of grog, or the means of escape from prison. But it is "the painfulness of this privation" which answers, in our prisons, the purpose which the douche, or the yoke, or the cat-o'-nine tails are supposed to answer in other prisons. It is suffering with profit, for it breaks up a most vicious habit, and it is suffering without degradation, too. Why should we throw away such an advantage?

But what shall we say to the other ground of apology for allowing tobacco to the prisoners, viz., for the cure of "dyspepsia and mental depressions, otherwise treated in vain?" In such a war, we must put Greek against Greek. In insane asylums, where physical and mental diseases are supposed to have the most skilful medical treatment, we are informed that the use of tobacco is strictly interdicted by the resident physician; and we notice by the return of the Ohio Lunatic Asylum, that six of the cases of insanity received into that institution last year, are believed to have originated in the use of that narcotic! Nothing could show the prodigious power of the habit more strikingly than the remark of Dr. G., that "the fear of being deprived of it has produced a degree of order and discipline throughout the establishment, that the severest punishment could not effect." We have seen, in a nursery of young rogues, a violent uproar against a parent or care-taker quieted at once by just giving a sugar plum, or a bit of gingerbread, which had been at first denied. How far such concessions to the vicious appetite of convicts, or to the unruly will of children promote sound discipline, is not a matter of doubt to observing minds. A firm maintenance of wholesome authority, or the discreet use of King Solomon's specific for disorders of the temper, would perhaps add a new strain to the discordant music for the time being, but it would be likely to produce very agreeable harmony in the end.

The striking improvements which have been made in the hygienic arrangement of the Eastern State Penitentiary, and for which it is greatly indebted to the earnest and well directed efforts of Dr. G., cannot fail to impress every reader of the report. Without relaxing in any degree the radical principle of separation, or rendering the penal feature of the discipline any less severe, the moral and physical well being of the convicts has been greatly advanced, and the claims of the worst of them to kind and humane treatment have been recognised with a distinctness of which they are, for the most part, happily conscious. If we would give to an inquirer on the subject a succinct but impressive view of the advance which has been made in the improvement of our system of prison-discipline, we know of no document to which we would refer with more confidence than this report of Dr. Given.

ART. III.—JUVENILE DELINQUENCY, TRUANCY, &c.

In our last number, we commenced a notice of several interesting matters occurring in Boston and its vicinity, and falling within the range of our observation. The presentment of the Grand Jury of Suffolk County was under discussion, and we promised to return to it again when opportunity should allow, and this promise we now redeem.

The establishment of “an *intermediate reform school* for young persons, who are committed for first offences, when there is an apparent opportunity for their reformation by the use of moral and intellectual discipline,” is strongly urged in the presentment. The Grand Jury have in view a plan, “where the mark of the penitentiary shall not be put upon the convicts, but where, by judicious management on the part of superintendent, and exemplary conduct on the part of those consigned to his charge—they whose misfortune it may be to stray from the paths of rectitude, could again be received into the bosom of society without reproach.”

To enforce their suggestions, they call into view “the large number of minors that have been brought before the tribunals of public justice within the six months last past,” and express their deep conviction that “if some plan were provided, at which neglected children could be made to pass their time, instead of upon the wharves, in the streets, around the doors of theatres, or in the market places,—say in some industrial school provided by the State,—juvenile delinquency would very much decrease.”

These are all very good notions for a Boston jury, or any other jury to entertain, but suppose we should transform all these jurymen into Legislators, and give them a seat in the House of Representatives; and suppose a proposition were submitted to enact a law, making it compulsory on all parents to give their children a certain amount of schooling every year, and in default thereof, authorizing and requiring the proper authorities

to remove such children from the custody of the parents, for the purpose of schooling them. Would they then and there take the same view of the subject? Would no misgivings arise about the bearing which their advocacy of such a stringent law might have on their political prospects? Would they advance as directly and as boldly to the application of the remedy as they do to the exposure of the evil?

It is obvious from the language of the report, that the Suffolk Grand Jury have a much clearer idea of the disease than they have of the cure. The class of persons to whom they refer as “committed for first offences” are nevertheless “convicts,” and nothing can remove the “mark of the penitentiary” but an executive pardon. And whether there is “an apparent opportunity for their reformation,” is not an easy question to determine. When the distinction comes to be practically applied, it would be found very perplexing. Our Houses of Refuge are intended to receive those who have entered, or are just entering upon a course of life, which ordinarily ends in the penitentiary; and they have doubtless saved scores of youth from the convict’s infamous doom, and returned them to their families and to society, with every prospect of usefulness and respectability. And we had supposed that the State Reform School at Westborough, which has been so successfully conducted, was designed to answer exactly this end. The boys who are committed there, are generally sent for first offences, and the discipline is strictly reformatory. Does the report of the jury then contemplate an institution between the Reform School and the State Penitentiary, or between the Reform School and “the House of Reformation for Juvenile Offenders,” at South Boston? If the former, what ends are expected to be answered, which the institution at Westborough fails to accomplish; and if the latter, what class of offenders would they find between those at Westborough and those at South Boston, for whose case neither of these establishments provides?

However obscure the intimations of the report may be on this point, they are very clear on another, viz., that juvenile delinquency would be greatly diminished if all idle, loitering, loafing children “about town” were put to good, industrial schools. It is not a whit more certain, that if the Cochituate pond were to dry up suddenly, Boston would have a far less generous supply of water than it has now. But how shall this abstraction from the

streets and wharves, of the filthy, foul-mouthed, ragged urchins be brought about? When and where shall the industrial school be established? What shall be the nature of the discipline, and the length of the confinement? Shall the public support them, or shall contributions be levied on negligent parents? Such schools have been greatly prospered, we know, in some of the chief towns of England and Scotland; but the institutions of society and indeed its whole structure, will allow that to be done there, which would not be tolerated here. We must give our Boston friends credit, however, for a very wise and effective step towards the suppression of juvenile vice. We allude to the law for the correction of truancy, and we cannot more usefully occupy a page of our limited space than by transcribing one or two passages from a leading document on the subject. The views expressed are quite as appropriate to Philadelphia as to Boston.

As early as 1846, a report came from the school committee of the city, in which the mischief of truancy is represented as not only interfering greatly with the regular process of instruction, but as exerting a demoralising effect which can hardly be counteracted, and employs much of the time and energy of the masters in preserving the discipline which it assails. Nor is it an evil (says the report) which ends with the schools. If it did, our duty would still require of us to do whatever we can do for its suppression or diminution. But it is certain, that, from the juvenile depravity of which the truancy of the school is both a sign and a cause, grows a large part of the suffering and crime of society. It is rare to find in our prisons those who were well cared for as children, and trained in regular habits of useful industry. An active child can be kept out of evil only by giving him something good to do; and when idleness has thoroughly corrupted the earliest years of life, what can we expect from riper years, but a maturity of vice, greater as temptations become stronger, and opportunities for crime are enlarged?

In the worst cases, the truancy of the children, or their entire absence from school, is permitted by the parents, and sometimes caused by their desire to share in those wretched gains of debasing or dishonest pursuits, for which after-time will exact a fearful price.

If the law on the one hand, provides schools to which all the children of this city *may* go, on the other it provides another institution to which certain children may be *made to go*. Here then are institutions for those who *will*, and for those who *will not* be instructed; and under one or other of these classes all our children may be arranged. The 143d chapter of the Revised Statutes, Sect. 5th, enumerates among those who may be sent to the House of Correction, “stubborn children;” and the “Act concerning juvenile offenders in the City of Boston,” authorizes the City Council to establish a building for “the reception, instruction, employment and reformation of such juvenile offenders as are hereinafter named;” this building we have: and the third section of the same Act provides, “That any Justice or Judge of the said Courts, (the Supreme Court, Municipal Court, and Police Courts) on the application of the Mayor, or of any Aldermen of the City of Boston, or of any Director of the House of Industry, or House of Reformation, or of any Overseer of the Poor, of said City, shall have power to sentence to said house of employment and reformation, all children who live an idle and dissolute life, whose parents are dead, or if living, from drunkenness, or other vices, neglect to provide any suitable employment, or exercise any salutary control over said children.” And the sixth section provides that any child committed to the House of Correction, may be transferred to the House of Employment and Reformation.”

It would seem, therefore, that the framers of the laws have done enough, if they who are entrusted with the execution of the laws do their duty.

These statements and views were not without their effect, though measures of reform were not matured until 1850, when a law was past, which we copy entire as the shortest method of presenting the whole matter to the view of our readers.

“AN ACT CONCERNING TRUANT CHILDREN AND ABSENTEES FROM SCHOOL.”

1. Each of the several cities and towns in this Commonwealth, is authorized and empowered to make all needful provisions and arrangements concerning habitual truants and children not attending school, without any regular and lawful occupation, growing up in ignorance, between the ages of six and fifteen years; and also, all such ordinances and by-laws respecting such children, as shall be deemed most conducive to their welfare, and the good order of such city or town; and there shall be annexed to such ordinances, suitable penalties, not exceeding for any one breach, a fine of twenty dollars: *provided*, that said ordinances and by-laws shall be approved by the Court of Common Pleas for the county, and shall not be repugnant to laws of the commonwealth.

2. The several cities and towns, availing themselves of the provisions of this act, shall appoint, at the annual meetings of said towns, or annually by the mayor and aldermen of said cities, three or more persons, who alone shall be authorized to make the complaints, in every case of violation of said ordinances or by-laws, to the justice of the peace, or other judicial officer, who, by said ordinances, shall have jurisdiction in the matter, which persons, thus appointed, shall have authority to carry into execution the judgments of said justices of the peace, or other judicial officer.

3. The said justices of the peace, or other judicial officers, shall, in all cases, at their discretion, in place of the fine aforesaid, be authorized to order children, proved before them to be growing up in truancy, and without the benefit of the education provided for them by law, to be placed, for such periods of time as they may judge expedient, in such institution of instruction or house of reformation, or other suitable situation, as may be assigned or provided for the purpose, under the authority conveyed by the first section, in each city or town availing itself of the powers herein granted.

ORDINANCE OF THE CITY OF BOSTON.

Sect. 1. The city of Boston hereby adopts the two hundred and ninety-fourth chapter of the laws of the commonwealth, for the year one thousand eight hundred and fifty, entitled “an act concerning truant children and absentees from school,” and avails itself of the provisions of the same.

Sect. 2. Any of the persons described in the first section of said act, upon conviction of any offence therein described, shall be punished by a fine not exceeding twenty dollars; and the senior justice, by appointment of the police court, shall have jurisdiction of the offences set forth in said act.

Sect. 3. The house for the employment and reformation of juvenile offenders, is hereby assigned and provided as the institution of instruction, house of reformation, or suitable situation, mentioned in the third section of said act.

We understand that this wholesome law was put in active operation at once in the city of Boston and in the adjoining town of Roxbury, and that a faithful execution of it bids fair to correct the hideous public nuisance of truant children. We wish it were practicable to secure similar legislation in our city. No indolent, thoughtless farmer ever stood on the borders of his field, and witnessed the broad-cast dispersion of Canada thistle-down over every part of it, with more composure than our lawmakers and magistracy look upon the spread of juvenile corruption in Philadelphia. We say this not without a grateful sense of the late liberality of the legislature in granting \$60,000 towards the erection of a new Refuge in Philadelphia; nor without a just appreciation of the results of the labours of that excellent institution; nor without taking into view the various agencies designed to accomplish similar objects. But upon the mass of juvenile waywardness and depravity, they seem scarcely to have made a perceptible impression. The accumulation of the material out of which convicts are made is not sensibly checked. The sources of this corruption have been laid open to view in the reports of our Houses of Refuge, our Magdalen Asylums and police reports, but they remain as numerous and as prolific as ever. Corrupt places of amusement are thronged by boys and girls. Our eligible schools are open to them in vain. The hawking of newspapers, occasional jobs at the steamboat

wharves or depots and chance-errands in the market-place, afford them means of vicious indulgence; and the regular service of an apprenticeship to some useful business, with the wholesome restraints which were formerly involved in this relation, are too irksome for their impatient spirits. Boys and girls of twelve or fifteen years of age, in a majority of cases, choose their own pursuits, receive the whole or a part of their earnings, to be expended at their pleasure; and with these elements of independence it is not difficult to connect a contempt for all authority, parental and magisterial, and this soon breaks up the foundations of society. Then there is that still unabated nuisance of young girls going about with fruit and candy; and by their very manner of life exciting, if not soliciting heartless wretches to make them their frequent or future prey. Is our community doomed to stand quietly by and see these streams of social corruption rising and swelling? Is there no arm long enough and strong enough to reach the fountain and check, if not suppress, its issues?

We have given so much space to this topic of the report, that we must be satisfied with but a brief notice of the rest.

The State Prison at Charlestown, of which *Henry K. Frothingham* is warden, contains 476 prisoners, one-third of whom are foreigners. Six deaths occurred during the year, and the average number on the sick list was six. Libraries are highly commended as a means of moral culture, and it is recommended that they be furnished at the expense of the Commonwealth, not only to the State prison, but to county gaols and houses of correction.

The stinted supply of water at the Charlestown prison is mentioned as an evil, and it is a very expensive one too, inasmuch as it was procured during part of the summer, at an expense of from two to five dollars a day!

In the county gaol there were received between November 1, 1850, and November 1, 1851, 5,541 prisoners, of both sexes, 3,135 of whom were foreigners. The daily average was 120. The Grand Jury think that the Commonwealth's witnesses should receive as good fare while in prison, as they would be likely to receive at home. Whereas, they now are served with the same food that convicts receive. Whether this is not quite as good as most honest poor men can afford, does not appear.

In the Alms House at Deer Island during the six months ending December 1, 1851, 931 paupers were received, of whom 686 were foreigners. Of the whole number, 33 were males, and 398 females, and 203 were under 12 years of age. The number of deaths in the same period was 77. There is a loud complaint here also, that the supply of water is inadequate. No trifling defect in such an establishment.

The Grand Jury advert to the intolerable nuisance of bawdy houses, and suggest the expediency of a law, making the owners of such houses responsible for the use which is made of their premises. There is also a distinct reference in the report to the great disparity of punishments for similar offences, and the evil consequences which attend it—a subject to which we have more than once invited and urged attention.

The erection of the new County Jail in Boston, is such an important movement in the prison-world, and the structure and occupants present so many interesting topics of remark, that we must make it the subject of a distinct article.

ART. IV.—INSANE CONVICTS.

We cannot refrain from calling the attention of our readers to the continued postponement of measures for the safe custody and proper treatment of insane convicts. In the last report (January 1, 1852,) of the inspectors of the Eastern State Penitentiary, the following passage occurs:

If mental alienation in a prisoner renders his enlargement in society dangerous to its peace and safety, then that imprisonment is best which partakes of the nature rather of restraint, than punishment. There are in the Penitentiary some prisoners who, insane on admission, require now only restraints and proper treatment for their mental disease.

With these views, the Board of Inspectors would respectfully suggest that the legislature would provide by law for the removal of such cases to the State Lunatic Asylum. In that institution, established for the treatment of mental disease, the prisoner who ought from prudential reasons, to be restrained from society, could be subjected to remedial discipline, if not cure.

By the report of the warden it would appear, that he has no expectation of more than a partial relief from this quarter. His language is:

By information derived from the public prints and other sources, the State Asylum at Harrisburg would appear to be designed as a hospital for the cure of the insane, to the exclusion of the *hopeless* sufferers from this distressing malady, who may offend against the laws: thereby leaving us still to be the recipients and guardians of these unhappy people.

If such be the case, I would earnestly inquire whether the subject should not be at once so understood, and suitable arrangements for

their comfort and security be immediately made, under the sanction of legislative aid and authority.

One of the physicians in allusion to this topic, calls attention to the fact that “much of the mortality is composed of prisoners, who, first go deranged, and then, like Bajazet, literally dash out their brains against the bars of their cage.”³

When will this terrible cruelty end? he asks. I had hoped that the remedy was at hand, but I regret to learn that the prospect of transferring our insane to the State Asylum seems as yet far distant. In their behalf, however, I shall make a last appeal. In the name of justice and mercy, let it be no longer necessary for the friends of the institution to deplore, or in the power of its opponents to boast that a number of helpless lunatics are immured within the cells of the Eastern Penitentiary.

And the other dilates upon the subject in the following terms:

For many years past, I find representations have been made to the Board by my predecessors, urging the propriety and the necessity almost, of removing the insane confined in this institution. I must record my testimony also.—The evil is unabated, and I cannot consistently with my duty as physician, nor with my own personal feelings, pass by this matter without at least doing the little I may be able to have it remedied. Heretofore there have been difficulties in the way, which happily exist no longer. The completion of a State Lunatic Asylum, it is to be hoped, has removed the last obstacle to a course already long approved of by every one, and urgently demanded by all the material and moral circumstances concerned in the case. For the object of prisons, if I understand it, is the punishment and prevention of crime, and, possibly the reformation of criminals. But the mischief that irresponsibles may do, is not crime, nor are they criminals: they may be restrained, but not punished. We punish and endeavor to reform the criminal, the imbecile and insane, we confine sometimes, but at all times, should endeavor to protect, to foster, to cure. It may often be very proper, in regard to these, to turn their hospital into a temporary prison, but it can hardly be deemed compatible with the

objects and discipline, or the material arrangements and accommodations of penitentiaries, to make them serve the double purpose of prison and hospital—confounding in a common receptacle those that society ought to protect, and those it is obliged to punish.

At the present time, we have a number of these unfortunates in a truly pitiable condition; and it is not only with a painful, but also with a mortifying and humiliating feeling, that we are continually obliged to reflect, that it is not in our power to improve it.

Turning from the State Penitentiary to the State Hospital, we are met with the following passage in the first annual report of the trustees:

“There are at the present time in the State penitentiaries, and in the different jails of the commonwealth, a considerable number of insane, —alleged criminals—who ought to be transferred to the State hospital as soon as its buildings are completed. There are also in these institutions a few, who, from their peculiarly dangerous character, and the utter hopelessness of benefiting them by treatment, can never with propriety become inmates of the hospital. To protect the community and the ordinary insane from the dangerous propensities of these individuals, it would be necessary to introduce into our wards, intended for the treatment of disease, all the most repulsive features of a prison, or that a separate building, having strictly a prison character, should be erected upon the grounds. Some legislation will be required before any of these cases can be admitted, and some mode of proceeding should be adopted which will prevent any but proper cases being received from these sources.”

It is obvious that different constructions are put upon the language of the report of the trustees, by the different officers of the penitentiary. The inspectors evidently regard the State Lunatic Asylum as the proper place to which insane prisoners should be removed, whether for safe keeping or for treatment. The warden apprehends, that one class of the insane convicts would be received at the State Hospital, though the other may be excluded. Dr. Given regards the prospect of transferring any of them as far distant, while Dr. Lassiter thinks the completion of the hospital has disposed of the last obstacle to the removal of all.

If we understand the language of the trustees, it admits that a considerable number of “ordinarily” insane persons now in our State Penitentiary and in the different jails, ought to be transferred to the hospital as soon as it is so far completed as to secure them; while they maintain that there is another class of insane prisoners of “dangerous propensities,” who ought not to be received into any hospital, but for whom a separate building should be provided, on the grounds belonging to the State institution, entirely distinct from it, though doubtless under the same supervision and attendance with the main hospital.

In giving this construction to the passage, we assume that the phrase “*any of these cases*” in the last clause, is limited to the dangerous and hopeless class, who can never with propriety become inmates of a general hospital.

An insane man, whether a convict or not, must always be an object of deep sympathy. Whatever guilt attaches to him, we lose sight of it in the terrible calamity by which he is overwhelmed. The moment it becomes manifest that he has, through the visitation of God, lost the control of his intellectual faculties, so as to be exempt from the ordinary responsibilities of a reasonable being, all his relations to society are changed. The government which stood ready to charge home his guilt and demand his punishment as an offender, offers him protection and sympathy as a sufferer. The sword of justice is converted into a sceptre of mercy, and so long as this dark cloud overshadows him, the voice of the accuser is silent.

We apprehend there would be much difficulty in distinguishing practically between those insane convicts, who might be received into the State Hospital as ordinary patients, and those who would require to be kept by themselves. So far as the safe custody of the dangerous class is concerned, the number would seem to be too small to justify the expense of “a separate building, (having strictly a prison character,) erected upon the (hospital) grounds,” as the trustees suggest. No class of prisoners are more ingenious or more untiring in their efforts to escape than the insane; and hence their safe keeping would be the chief point of consideration in the construction of a building for their reception. If separate provision is not made for all classes of insane convicts, we should much question the expediency of making it simply for the safe keeping of the dangerous. We would rather

ameliorate, as far as possible, their condition as convicts in the cell, affording them extra diet, appropriate association, amusement, &c. Nothing would be gained by transferring them from a cell in Philadelphia to a cell in Harrisburg, provided they are to be strictly confined to either; and any relaxation of this rigor which their convalescence might warrant, would be attended with much less hazard in the prison-yard, than on the hospital grounds.

But we have serious doubts, whether a general State Lunatic Hospital should receive convicts of any class. We are aware, that the practice obtains to some extent, but whether, in a majority of cases, the parties received can be properly called convicts, there is much ground to question.

In the report of the New York State Lunatic Asylum, for 1851, we notice ten cases returned under the head of "imprisonment," eight of which are declared to be cases of "feigned insanity," and of course though "convicts," they were not "insane." Of the other two, one became insane before trial, and was of course, though insane, never properly a "convict." "Besides these ten," says the report, "there have been sent to us from prisons and gaols several others, who were cases of genuine insanity, but who were doubtless insane when committed." Then they were never proper subjects of penal suffering, and should not have been imprisoned, except for safe keeping. In most of our State hospitals pay-patients are received to some extent, and those who resort to them as institutions of charity, should not be forced into discreditable association. It is of great importance, that every thing attractive should be presented in them, and every thing repulsive avoided. The poverty-stricken are sometimes quite sensitive on these subjects, and it is as inhuman as it is impolitic to violate their feelings.

The attention of the British Parliament has been recently called to this subject by a proposition of the commissioners of lunacy, to establish a central asylum for "criminal lunatics" in England and Wales, similar in character to that for Ireland, at Dundrum, near Dublin. The commissioners say, that "it has been frequently brought under their notice, that the friends and relatives of patients, and also the patients themselves, when conscious of being associated with "criminal lunatics," have considered such association a great and unnecessary aggravation of their calamity." There is

some doubt expressed, whether such feelings prevail to any considerable extent in institutions where convict-patients are received; and to the question, whether the dislike to the society of criminal lunatics ascribed to patients and their friends, exists generally or only in those cases which were brought specifically under the notice of the commissioners, one medical witness says, that his own experience is directly the reverse; that he has carefully watched, in order to detect any repugnance or unfriendly feeling among the inmates of a county asylum, of which he has charge, towards their fellow-patients, who were known to have committed offences against the laws, and had not only failed to do so, but had heard expressions of sympathy and pity. He thinks there is much more tenderness felt for them by their fellow sufferers, than by their sane neighbors.

There is also a considerable difference of opinion, not only as to the classes of lunatics which the proposed asylum should receive, but also as to the name both of place and patients. Some would call it the State asylum, and would open it to all criminal offenders of every station and degree, who are exempted from the penalties of the law on the ground of insanity. Of course it would have the character of a general, and not of a pauper asylum, so as to afford superior accommodation for those who could afford to pay. Others would confine the use of such an asylum to the detention and treatment of all lunatics of criminal disposition, whether they have actually committed a crime or not. Some would completely separate criminals who have become insane after conviction, from those who have committed crimes under the influence of insanity—the former, of whom only would be properly called insane convicts. The distinction is obvious, viz., that an insane person cannot become a convict, though a convict may become insane. Others would make no distinction, but would put “all lunatics detained under warrant from the government, on the same footing.”

The discussion of the matter has awakened parliamentary inquiry. On the 18th of March last, in the House of Lords, the Earl of Shaftsbury moved an address to the Crown, touching “the expediency of establishing a State asylum for the care and custody of those who are denominated criminal lunatics,” and he adduced several facts, to show the inexpediency of detaining criminal lunatics in the same asylum with other patients.

The Earl of Derby thought any movement in this direction would be premature, as a revision of the whole subject was needful, before it could be determined what new legislation would be expedient.

Lord Cranworth said, that nothing could be more mischievous than mixing criminal lunatics with other lunatics; and he also contended that the question of lunacy in criminal prosecutions, should not be determined by juries; but that the only point for them to decide, should be the fact—guilty, or not guilty—leaving the question of sanity to be inquired into before another tribunal, the constitution of which he was not then prepared to define.

On an assurance from Lord Derby that the subject should receive deliberate consideration, the motion was withdrawn.

As it seems unlikely that any provision will be presently made in our State Hospital, either for convicts who become insane, or who manifest insanity after they are received, or for those who were insane when received, but were committed as convicts, or for those who are committed for safe keeping merely, or as lunatics with criminal intentions, or propensities, we will venture to suggest a more minute classification of the register of prisoners, and some specific recognition of these classes in the arrangements of the Eastern Penitentiary.

If that institution is to serve the double purpose of a penitentiary for convicts, and a house of detention or hospital for lunatics of dangerous or criminal tendencies, let the departments be kept distinct, and each be furnished with such attendance, supervision, &c., as their circumstances require. This arrangement would very nearly resemble that at the Blockley Almshouse, under which the two thousand paupers are received and provided for in the appropriate wards of the house, while the two or three hundred lunatics of various classes have a distinct department, though all are under the same general superintendence.

So in the reports, the same distinction would be made between the convicts proper, who are undergoing the process of punishment, and those who from alienation of mind, antecedent or subsequent to their reception as prisoners, are not proper subjects of penal suffering, though they are proper subjects

of personal restraint, and, as such, have a lodging within the prison walls. In a word, if our penitentiary must be used for the detention or custody of lunatics whatever their character or grade, let it have due credit as a hospital, and not suffer undeserved reproach as a penitentiary.

ART. V.—FINAL REPORT OF THE COMMITTEE ON THE ERECTION OF THE NEW GAOL FOR SUFFOLK COUNTY (MASS.), pp. 44.

This document was presented, not long since, to the authorities of the City of Boston; and, as it gives us the history of a prison structure quite unique, in some respects, we think our readers will be interested in a brief notice of it.

The County of Suffolk is made up of the City of Boston, with a population of 140,000, and the town of Chelsea, with a population of 7,000. The County Gaol, situated in Leverett street, in the heart of the city, was, for almost twenty years, the subject of complaint. It was irremediably defective in construction, and incapable of being warmed or ventilated, and afforded no means of classification. The site of it was ill adapted to the purpose. It embraced 4800 square feet of land, valued at \$1.50 or \$2.00 a foot.

In July, 1845, a plan of a new gaol, to be erected at South Boston, was presented, and an order passed to proceed with the work; but the people in the vicinity objecting to the measure, it was not prosecuted farther; and nothing more was done till, at the beginning of 1847, a letter⁴ was addressed to the city authorities by Mr. George Sumner, then in Paris, earnestly remonstrating against the adoption of the associate or Auburn system of discipline, and urging the construction of a County Prison on the separate plan. The next year, it was determined to rebuild on Leverett street; but before the work was commenced a proposition was submitted for the purchase of an eligible site on the margin of Charles river, which was adopted; a purchase of nearly 200,000 superficial feet was made, at a cost (with filling up, enclosing and protecting), of a fraction less than \$179,000; and a plan of construction agreed upon. From this time the work went bravely on, till its completion, on the 25th day of November last, when the

prisoners were transferred from the old gaol, in Leverett street, to their new quarters.

The cost of the building, exclusive of site, is a little short of \$200,000—the total expense being \$373,525.90.

There is a centre octagonal building, with four wings—three of which contain the cells—and the fourth is taken up by the officers' apartments. Each of the north and south wings measures 80 feet 6 inches in length, and 55 feet in width, and 56 feet in height above the surface of the ground, and is divided into five stories, each story containing ten cells, thus giving to each of these two wings 50 cells. The east wing measures 164 feet 6 inches in length; 55 feet in width, and 56 feet in height above the surface of the ground, divided into five stories, each with 24 cells, thus giving to this wing 120 cells. The cells in all the wings are 8 by 11 feet, and 10 feet high. The hospital and chapel occupy the fourth story of the west, or officers' wing. Each cell contains a window and a door; and the interior of the whole prison is lighted from 28 windows in the outer walls, each 10 feet wide and 33½ feet in length. The lower apartment of the centre octagonal building contains the kitchen, bakery and laundry, and in the upper is the central guard and inspecting room. This apartment is 76⅓ feet square, and stretches upward to the roof, in a clear, unoccupied space of 83⅔ feet above the surface of the ground! The exterior walls of the prison are of Quincy granite.

The opportunity was afforded us, some few days since, to take a general view of this new and imposing structure. At the time we were there workmen were engaged in erecting a new furnace—the method of warming the cells having proved quite inadequate. One might have supposed that this branch of the science of prison architecture was sufficiently understood to prevent such a disappointment. The inmates of the prison were evidently suffering from this defect.

The *Separate System* is strictly enforced, except that no labor is introduced, the prison being chiefly a house of detention for debtors, witnesses and untried prisoners, upon whom labor or other prison service may not be enforced. Thirty or forty convicts were there, but under sentences so short as to render it unprofitable to put them to work. Many were committed for

non-payment of fine and costs. The debtors have a separate ward, as have also females and minors. Among the most obvious and important deficiencies may be mentioned that of water. Tubs and cans are used in the cells. The rates allowed for the board of witnesses are liberal, and an instance was mentioned to us of a case so unimportant that the defendant was bailed in the sum of only \$30, while several witnesses were then in confinement at the rate of \$2.25 per week for their board!

Whoever forms a judgment of the new gaol for Suffolk County from the description in the Report of the Committee, will find much cause to modify it upon a view of the premises; and if we were not misinformed by resident officials, the structure fails, in some very important particulars, to answer the purpose which its projectors had in view. Some attribute its defects to the unsteady counsels that presided over its erection, and others to radical errors in the plan. As it has great advantages over the old gaol, however, we are disposed to consider it a step in advance, though certainly a very costly one.

Miscellaneous Notices.

FOREIGN.

CRIME AND PAUPERISM COUNTERACTED.

“It is a trite argument now, that the reformation of one child, while it is far more hopeful than the reclamation of one old offender, is many degrees cheaper than the punishment of that one. Experience proves that there is scarcely a single case out of a thousand where the incipient disease of vice has not yielded to the ameliorating treatment of kindness, and the removal of the cause—poverty. Cheaper; because directly diminishing pauperism, it, in the first place, reduces the amount we, as a community, pay for its support; cheaper, because trying, catching and punishing one criminal, costs, in some cases, an amount equal to the whole annual expense to feed, clothe, and instruct a school-full of those who are to be prevented, by a simple process, from becoming criminals; and cheaper, in this far higher sense, that the reformation of one individual infinitely more than counterbalances the expense of attempts, even where ineffectual, at reforming many.”

Let the doubter of these positions call at some school where the lowest order of human kind finds shelter, food and friends. We have seen such an one—in the old country. We will introduce our readers to one of its pupils:

He enters through a play-yard, where half a dozen little fellows, not very fashionable, though quite decent in their attire, are amusing themselves with tops and balls, and, if noise is a test of comfort, they are very happy. Ascending an outside stair, he turns into a somewhat spacious apartment. The roof indeed is not lathed and plastered, but there is all the more ventilation. Everywhere, although things are

homely enough, there is an air of perfect cleanliness. Two or three excellent maps hang across and divide the apartment, in one end of which are the boys, in the other the girls. Let him look at either class, and what a strange study for the physiognomist or phrenologist are the faces and foreheads of the pupils. Some have countenances on which the traces of very early hard life are still visible; the lines of misery are scarcely yet effaced. There are others, free, good brows, which give unmistakeable evidence of shrewdness and talent; but on every face there is contentment. The teachers in both divisions are busy at the usual lessons; but, at the stranger's visit, the classes are united, and an exercise is gone through by individuals of either sex, chosen promiscuously. In the back seat there starts up a little fellow about twelve years and a half, who, caught half-naked, begging through the streets some fifteen months ago, can read his Bible like the best of us; another reads a verse or two of poetry; a third small youth, whose only occupation, till within a year or so, was selling matches through the streets, is proved, after trial, to be far the best speller in the place, where there are not a few very good ones, and so on. The procedure is as orderly, and the advancement in secular and Christian knowledge, of these once outcast and forsaken children—now clothed and in their right mind—is as great as in any of the best public schools; and seems to have been *at least* as rapid as among the children of what are called the respectable classes of society. And now a hymn is sung by all united, and, as they sit and sing, with folded arms and serious looks, there is enough, whether in the whole scene, or in the music so touchingly chanted, to send something like a tear into the corner of the eye. This over, the ranks are marshalled, and then pass down to the room below, where dinner waits; and, standing silently over the homely but substantial fare, a sign is made, when every eye is closed, and grace is said aloud. Enjoying themselves over their humble meal, our visitor leaves them, and heartily joins us in recommending a visit to such a scene, and inviting public attention to the principles on which these poor children are made what they are. The leading and moving principle is that of kindness and love—the endeavouring by all means to win them back to trust and confidence in the kindness and love of teachers and friends; and looking at the interests at stake, surely we may say that these are endeavours which a Christian public *is bound* to

second, especially when the seconding costs so little, and is attended, as we have seen, with so great results.

If any of the readers of our Journal would see this same wise and humane policy exhibited in actual life, let him visit the Foster Home, (at what is known as the Preston Retreat,) or the Children's Home in Moyamensing, and he will see how much seasonable care and kindness will do, towards counteracting the downward tendencies of poverty and social corruption. The following stanzas happily express the grand idea of social reformation.

SPEAK TO HIM KINDLY.

Oh! speak to him kindly—the boy has a heart,
Pray think, ere you bid him in anger depart;
His tatters and rags will not darken your door;
Perhaps its not *his* fault he's dirty and poor!
Would you wonder to find him a rogue or a fool,
With Distress for his master—the Street for his school?—
Some feeling of pride in his bosom may beat,
Though he stands at your door without shoes to his feet.

Do you question his story, and turn on your heel?
Starvation can teach him to beg and to steal;
Would you drive him to pilfer by scorn and rebuke?
Oh! a beggar has virtues as well as a duke.
Remember a man's not the wisest and best
Because of the star that may shine on his breast:
The poorest on earth may nobility own,
And a king be a villain in spite of his throne!

Yes! there's found in the garret again and again
A power that softens e'en poverty's chain;
A spirit of honest endurance, that brings
More comfort than throbs in the bosoms of kings.
Then turn not away from that fatherless boy—

His soul is not dead to the feeling of joy;
A kind word on his path like the sunshine will fall,
And his dull eye light up to repay you for all.

Oh! treat him not harshly—but win if you can;
The boy in his rags will one day be a man!
That urchin before you—so haggard and pale
May live in a workhouse, or die in a jail!
But virtue and truth may be found in him still.
Then turn not aside—you may save if you will:
Can you leave him to grow up a knave or a sot,
With a home or a school not a mile from the spot?

Then speak to him kindly—'twill cost you no more—
Oh, drive him not hungry away from your door!
But give him, in pity, a morsel to eat,
A coat for his back, and some shoes for his feet.
The humble though homeless by Jesus are prized,
Remember that He was both poor and despised—
And oh! think on his words, ere impatient you be,
“Inasmuch as ye did it to these, 'twas to Me.”

NOVEL RESIDENCE OF A DEN OF YOUNG THIEVES.—From a late London paper, we take the following remarkable sketch of the rendezvous of a gang of juvenile depredators. We have some such domicils, and some such tenants of them, in our own cities.

Five ragged and filthy boys were charged with trespassing on property belonging to the South Western Railway Company. An officer stated, that at three o'clock, on the preceding morning, he examined the arches under the terminus of the South Western Railway, and observed a hole, capable of admitting a man's body in one of them, situated in Granby street. On looking through this aperture he discovered the prisoners, some of whom had pipes in their mouths, smoking, while others were talking and laughing; and all seemed as if they were perfectly secure from discovery in their hiding place. The moment he threw light upon the groups, they all started upon their feet, but the

arch being enclosed on all sides, they had no opportunity of escape, and were secured without difficulty. They had worked holes, and undermined the arch in several places. In a hole, covered with a piece of board, he found small parcels of coffee, sugar, pepper, candles, &c. There was also a quantity of coals, and straw covered a portion of the ground.

The magistrate then asked the witness if he knew the prisoners? The officer said that they had all been convicted of petty offences. The officer of the South Western Railway said that a number of their companions were convicted some time ago for a similar offence, and that it cost the Company £75 to repair the arch which they damaged by taking up their quarters in it! Seventy-five pounds expended in good schooling, would have gone far towards making good boys of them.

They were sentenced to imprisonment for various terms, from 25 to 40 days—probably to come out ten-fold more the children of evil than when they went in.

CASES OF THEFT AT A SINGLE TERM ON PERTH CIRCUIT, SCOTLAND.

<i>No.</i>	<i>Articles Stolen.</i>	<i>Previous Convictions.</i>	<i>Sentence.</i>
1	A tub,	4 (1 in Justiciary)	10 years trans.
2	A pail,	5 (1 in Justiciary)	10 “
3	A purse, with 5s.	4 (1 in Justiciary)	10 “
4	Purse, with 1s. 8½ <i>d.</i> , and trinkets,	2	7 “
5	Silver watch and appendages,	3	7 “
6	10 lbs. lead,	4	7 “
7	Jacket, vest, cap, and boots,	3	7 “
8	Jar, pepper-box, and 2s. 6 <i>d.</i>	2	7 “
9	Gown and pair of shoes,	5 (1 in Justiciary)	10 “

10 Quantity of soap, (1 in Justiciary) outlawed.

Note.—The value of the articles stolen may not in all exceed £5; there were 33 previous convictions, of which *five* were by the Circuit Court of Justiciary.

The investigations and trials of these ten persons must have cost the country at least £1000, which would have thoroughly educated in an Industrial School 200 children.

SINGULAR ASSOCIATION.—Lord Campbell tells us that he once heard a judge at Stafford sentencing a prisoner convicted of uttering a forged £1 note, and after having pointed out to him the enormity of the offence, and exhorted him to prepare for another world, the dignitary thus concluded:—“And I trust that, through the merits and mediation of our blessed Redeemer, you may there experience that mercy which a due regard to the credit of the paper currency of the country forbids you to hope for here.”

FRIENDLY BENEFICIAL SOCIETIES.—There are 14,000 enrolled Friendly Societies in England, having 1,600,000 members, an annual revenue amounting to £2,800,000, and an accumulated capital of £6,400,000. A still greater number of minor Friendly Societies are not enrolled, and do not, therefore, possess the privileges and means of self-protection enjoyed by the former. It is estimated that there are 33,223 societies in this position in England, Wales, Scotland, and Ireland; having 3,052,000 members, an annual revenue of £4,980,000, and with funds amounting to so large a sum as £11,360,000, the praiseworthy accumulations of the purely industrial classes. Indeed, half of the laboring male adult population are members of beneficial societies.

DIMINISHED PAUPERISM.—It appears from a late return presented by Mr. Baines, to the House of Commons, that there are well-nigh 26,000 fewer adult able-bodied paupers in the workhouses of England than at the corresponding period of last year. Of paupers, generally, no matter what their sex or age, the diminution is somewhat more than 56,000.

INTEMPERANCE AND INSANITY.—From an article in the Scottish Temperance Review, it appears that returns from 25 Lunatic Asylums give 24 per cent. of cases, caused by intemperance and vice. The total number of lunatics in England and Wales is estimated at 26,516. Of these, 6,629 were reduced to their lamentable condition by intemperance. The sum expended in England and Wales, for the maintenance of the insane, exceeds \$3,500,000.

METROPOLITAN MORTALITY.—From a very interesting and carefully compiled statistical table, published in the London *Medical Times and Gazette*, on the births and deaths in the Metropolis during the past year, it appears, that the number of births was, 39,882 males, and 37,984 females, being a total of 77,866, or an excess of males over females of 1,898. The number of deaths during the same period was 28,096 males, and 27,249 females, or a total number of 55,345 deaths, being an excess of deaths of males over females of 847, or an excess of births over deaths of 22,517. The ages at death were from 0 to 15, 25,712; from 15 to 60, 17,999; and from 60 and upwards, 11,362. The proportion of deaths, in 1851, to population in the several districts of London, will be seen by the following:—In the west districts, the population by the last census was 376,427, and the deaths in 1851 were 8,326; giving a proportion of one death to 45.2 inhabitants. In the north district, population 490,396; deaths 10,860; or one death to 45.1 inhabitants. In the central district, population 393,256; deaths 9,474; or one death to 41.1 inhabitants. In the east districts, population 485,522; deaths 11,819; or one death to 41.1 inhabitants. And in the south districts, population 616,635; deaths 14,884; or one death to 41.4 inhabitants. By a comparison of the above with the former year 1850, it will be observed that the births have increased, in 1851, by 2,554, and the deaths by 6,775. In 1850, the excess of births over deaths was 26,738; while in 1851, it was only 22,517, being a decrease of 4,221. The deaths at the age of 0 to 15 have increased over those of 1850 by 4,341; at the age from 15 to 60, by 1,634; and from 60 and upwards, by 780.

THE GREAT WASHED!—During 1851, there were 213,485 bathers at the baths and washhouses establishment, situated in St. Martin's-in-the-

Fields, London; the receipts amounted to £3,437 17s. 9d. There were 50,290 washers: the number of hours' washing was 103,836; and the receipts under this head were £499 14s. 1d. So at "the Model," in Whitechapel, there were during the same period 156,310 bathers, with £2,143 7s. 8d., receipts. There were 43,462 washers, who washed for 98,824 hours, and paid £513 1s. 2d. Taking the Metropolis generally, which as yet yields us reports but of five establishments, of which one was opened on the 2nd of September, we find that during the past year, there were 647,242 bathers, who paid in all £9,141 8s. 6d.; and 132,251 washers, who paid £1,498 19s. 2d. The sum of the combined receipts is £10,640 7s. 8d. The country returns yield similar results for the periods during which the establishments have been opened to the public.

The most remarkable indication of the state of trade in Birmingham during the past year, is to be derived from the savings of the working classes. These are shown in various ways. The accounts of the savings'-bank for the year 1851, although not yet published, are made up, and it appears that during the last twelve months, there has been an increase of 1,025 depositors, and of upwards of £20,000 in deposits. The aggregate amount of deposits, as will be shown by the report when it appears, is close upon £400,000. But this is not all. There are numerous Freehold Land and Building Societies in Birmingham, and not less than £70,000 has been paid by the artizans of Birmingham into their various treasuries.

SCOTCH PRISONS.—The Twelfth Report of the Commissioners of the Prisons of Scotland, shows that the average number of persons in custody in the prisons of that kingdom, in 1850, was 2990 against 3143 in 1849. The total expenditure on prison account for the last year was \$220,000.

CHARITIES IN LONDON.—Taking the whole of London, and not exempting from the account such as may be correctly classed as metropolitan institutions, as Greenwich Hospital, &c., there are no less than 491 charitable institutions, exclusive of mere local endowments and trusts, parochial and local schools, &c. These charities comprise—12 general medical hospitals; 50 medical charities for special purposes;

35 general dispensaries; 12 societies and institutions for the preservation of life and public morals; 18 societies for reclaiming the fallen and staying the progress of crime; 14 societies for the relief of general destitution and distress; 12 societies for relief of specific descriptions of want; 14 societies for aiding the resources of the industrious (exclusive of loan funds and savings-banks); 11 societies for the deaf and dumb, and the blind; 103 colleges, hospitals, and institutions of almshouses for the aged; 16 charitable pension societies; 74 charitable and provident societies, chiefly for specified classes; 31 asylums for orphan and other necessitous children; 10 educational foundations; 4 charitable modern ditto; 40 school societies, religious books, church-aiding, and Christian visiting societies; 35 Bible and missionary societies; showing a total of 491 (which includes parent societies only, and is quite exclusive of the numerous “auxiliaries,” &c.). These charities annually disburse, in aid of their respective objects, the extraordinary amount of £1,764,736, of which upwards of £1,000,000 is raised annually by voluntary contributions; the remainder from funded property, sale of publications, &c.

PRISON AT ATHENS.—The following description of an Athenian prison is extracted from a letter of an American citizen, (Rev. Dr. Jonas King,) whose name is doubtless familiar to most of our readers as associated with a very extraordinary exercise of arbitrary power.

In the Prison of Athens, called Medrese, 9th March, 1852.

I am now in prison, and my name is inscribed among the vilest malefactors of Greece, in a book kept for the purpose, in which the names of all who enter are written, with the age, description of their person, and the crime of which they have been guilty. Mine is that of preaching the word of God. That of two others here in chains, is the murder of seventeen persons.

The prison is called Medrese, which is a Turkish word meaning school; and this is so called, because it was formerly used by the Turks as a school. Besides myself, there are one hundred and twenty-five persons. A few days since there were one hundred and eighty. These occupy eleven small rooms, eight of which are about ten or eleven feet

square, in each of which are from eight to twelve persons. The other three rooms are perhaps two or three times as large, and in each are confined twenty-five persons. From these facts you can judge of the accommodations enjoyed here. Most of them have no beds on which to sleep, and some not very warmly clad. It is enough to make one's heart ache to see them. The sight of them made me feel that my trials and troubles were small.—Decent looking men, and the vilest malefactors; men not yet tried, and who are perhaps innocent, and those who have already been condemned for piracy, rape, and murder; the youth who has committed perhaps his first crime, or no crime at all; and those who have grown old in iniquity, and whose consciences are seared as with a hot iron, are here crowded together in one common mass, from which proceeds an odor by no means agreeable, even now when the weather is cool, and which as the weather grows warm, must become intolerable. And just think of sleeping in a little room, about ten feet square, with ten or eleven others locked in with you for the night, and only a small window in the door for air, and one by the side of it for light, darkened by its thick heavy iron gates, and looking upon a small court within.

It is scarcely credible that a country so closely associated with the most enlightened kingdoms of Europe, as Greece, and a city so conversant with modern improvements in municipal economy as Athens, should be open to the reproach of such folly and cruelty, as this paragraph discloses.

DOMESTIC.

NEW YORK STATE LUNATIC ASYLUM.—The annual report of this institution for the year 1851, furnishes the following facts: At the commencement of the year there were 429 patients in the asylum; 366 have been added, and 357 discharged during the year; of whom 112 were recovered, 15 much improved, 51 improved, 13 unimproved, and 45 died. The number in the asylum at the date of the report was 425, of whom 220 were males, and 215 females. Of those admitted during the year, the greatest number were between the ages of 25 and 30 years. Of the causes of derangement, the chief is stated to be intemperance, the

number of patients from this cause now in the asylum being 44 males and 1 female.

EMIGRATION.—The commissioners of emigration of New York, in a recent report to the legislature, state, that at the port of the city of New York alone, there arrived during the year 1851, 289,601, of whom there were natives of Ireland, 163,256; Germany, 69,883; other countries, 56,462; making an increase of 75,998 over the preceding year. The emigrants from Ireland exceed the whole number from other countries by 36,911. Of these, 85,000 were in a condition which required aid, being either sick or paupers.

It is stated in the public prints, (and we have seen no contradiction of it,) that a single Irish nobleman secured a passage to our shores of nineteen hundred persons, at the rate of £2 per head, and ten shillings on their arrival.

BOSTON CITY MARSHAL'S REPORT.—By the annual report of the marshal of the City of Boston, we learn that the whole number of robberies reported at the marshal's office during the year 1851, was 562; amount of property lost and stolen, \$44,418; amount of property recovered and restored to owners, \$26,131. The whole number of complaints and arrests was 5,449, among which were, for larceny, 625; drunkenness, 1,465. Of the whole number of arrests made, 1,110 were minors. There have been 969 complaints made to the Grand Jury, growing out of the sale of intoxicating liquors; and fines, exclusive of costs, collected, amounting to \$12,474; and 36 have been imprisoned in the House of Correction, for different periods, amounting in all to more than 10 years. The number who apply at the marshal's office for charity is very large, and all who were really deserving have had their wants supplied by that department, from a fund which is the proceeds of stolen and unclaimed goods, an accurate account of which has been kept. "There is no greater imposition practised," says the report, "than the system of begging and soliciting charity. We have now in the office a large number of written and printed papers which have been taken from these impostors; and from one person we took *twenty-one*."

HEALTH OF THE BOSTON FARM SCHOOL.—The following remarkable statement respecting the health and the mortality of the boys connected

with the Farm School, on Thompson's Island, in Boston harbor, is made on the authority of Robert Morrison, Esq., the Superintendent.

The number of boys in the school, June 1, 1851, was 85; January 1, 1850, 89; January 1, 1851, 97. The present number is 94, several having been recently sent to places in the country. No death has occurred on the island since August, 1845; which is the only time when a physician has been sent for on account of sickness among the boys, for nearly ten years!

Under Providence, we consider this, in some measure, owing to a healthy location, a simple but wholesome diet, exercise in the open air, and good ventilation.

The average number of boys in the school, for several years, has not been far from 80.

BOSTON PAUPERISM.—The Annual Report of the Boston Society for the Prevention of Pauperism, estimates the cost of pauperism to that city, in 1840, at \$43,454; in 1845, \$45,000; and in 1850, \$111,905! It also states that in the past five years, the native American paupers have decreased about 37 per cent., while foreign paupers, supported by the city, have increased about 150 per cent.

MAINE STATE PRISON.—When the State of Maine was about to erect a new Penitentiary a few years ago, the commissioners were disposed to recommend the separate system as decidedly preferable on every ground, except that it costs more at first, and may not yield so large a profit on convict labor. By the last report of the commissioners, we observe that of the whole number of convicts, (eighty-four,) about one-half are employed in making shoes—a business quite as profitably pursued in seclusion as in association. Basket-making furnishes employment to such as, from age or infirmity, are unable to perform hard labor, and this also might be as well done in a cell. As to the finances of the institution, a special committee of the legislature, appointed to investigate its affairs says, “they cannot give any definite information,” but they portentously intimate, (what time will probably reveal,) that if revenue is a prominent object in the management of the prison, it will be defeated. “For any losses which may accrue to the

State,” say the commissioners, “we attach no blame to any former warden or officer of the prison, for any neglect or want of care, but believe, the loss arises from the universal credit system which has been too prevalent in our State.” “We certainly hope so,” says a leading newspaper, “for it is high time the State were realizing more from the prison economy than it has yet done.”

We wish this notion of making penitentiaries a source of profit could be eradicated, or absorbed in the higher and more important objects of making them the means of instructing the minds of convicts, softening their asperities, correcting their false views, elevating their motives, and counteracting the corrupt influences by which they have been surrounded. These humane purposes cannot be answered to any considerable extent under any system, save that of *separation*, and it is from this conviction, and not from any pride or pertinacity of opinion, that we advocate the universal adoption of that principle.

THE MARYLAND PENITENTIARY.—By the report made to the Maryland Legislature, it appears the receipts of the institution, during the last year, do not equal its expenses by the sum of \$9,302 78. The average deficiency in the receipts for the last four years has been 89,267 63, and the aggregate deficiency for the same period 37,070 54. Various causes are stated for this deficiency—the unequal competition which the manufacturers of the prison have to sustain with those made by more improved machinery—the loss of time and labor consequent on the necessity of teaching the most of the convicts their employments—the prejudices which are entertained against the prison manufactures, and the difficulty of selling them at remunerating prices, being the principal causes to which it is to be attributed. The number of persons received into the penitentiary during the year was 119; discharged by expiration of sentence during the year 44; pardoned during the year 18.

POOR AND INSANE OF RHODE ISLAND.—Thomas R. Hazard, Esq., commissioner to inquire into the condition of the public poor and insane of Rhode Island, made his report to the Legislature at its late session. In fifteen towns in the State, asylums for the poor are maintained. In sixteen towns, not having asylums, the poor are put to

persons who will keep them for the lowest sum, or are boarded out by contract. The average cost for each individual per annum, in the asylums, is \$51.50; for each individual, per annum, of the latter class, \$45.60.

The average number of poor, supported in asylums, is 500; all others, 229; total, 729. Whole cost of supporting the poor, including interest on cost of asylums, \$51,003.23. Insane persons in Rhode Island, 282. Idiots and imbeciles, 136. Blind, 60. Deaf and dumb, 64.

RHODE ISLAND INSANE HOSPITAL.—We have not been favored with Dr. Ray's last report, but we learn from other sources, that of 54 patients discharged, during the year, 36 were cured, and 8 improved. There were 16 deaths. Of 420 insane persons in the State, only 180 are enjoying the advantages of Hospital treatment.

CHARITABLE INSTITUTIONS IN INDIANA.—*Hospital for the Insane*.—This institution has 140 patients under treatment, and yet there are in the State 300 insane persons (exclusive of idiots) who are totally unprovided for. Applications are rejected for want of room, and an immediate enlargement of the buildings is contemplated. It is stated that there are in Indiana 442 insane, and 617 idiotic persons. Of the 292 patients who have been treated in the hospital, only 78 were natives of Indiana.

Deaf and Dumb Asylum.—One hundred and thirteen pupils were under instruction at the date of the report, and the earnings of the pupils during the year, are valued at \$3,770. Only two deaths occurred during the year.

Institution for the Blind.—Fifty-two pupils are under instruction, from 33 counties. "The superintendent is of opinion that all applicants of sound mind, and not above twenty-one years of age, should be received, provided they are otherwise qualified, reserving discretionary powers as to the rest." A new building is in progress, which will enlarge the accommodations so as to admit every blind child in the State, who is capable of instruction.

ALABAMA.—We are happy to observe, by the public prints, that the people of Alabama have resolved to establish, forthwith, an Insane Hospital and a Deaf and Dumb Asylum.

KENTUCKY DEAF AND DUMB ASYLUM.—The Annual Report of the Trustees of the Deaf and Dumb Asylum shows that the institution is in a prosperous condition. There were 60 pupils in the institution from January 1 to November 12, of whom 29 were males and 21 females. Forty-five inmates of the institution are from Kentucky, 9 from Louisiana, 1 from Arkansas, 1 from Mississippi, and 1 from Tennessee.

From the Episcopal Recorder.

This periodical gives a large amount of information on Prison Discipline, and cannot fail to interest such as grieve over the sufferings occasioned by crime, and regard the imprisoned criminal as still belonging to our common humanity, and needing the commiseration of the wise and good.

From the Public Ledger.

We have received the October number of the Pennsylvania Journal of Prison Discipline and Philanthropy, published under the direction of the Philadelphia Society for alleviating the Miseries of Public Prisons. It is stored with interesting matter.

From the Presbyterian.

We have been reading with great interest the Pennsylvania Journal of Prison Discipline and Philanthropy.

AN INQUIRY

INTO THE ALLEGED TENDENCY OF THE SEPARATION OF CONVICTS, ONE FROM THE OTHER, TO PRODUCE DISEASE AND DERANGEMENT.

BY A CITIZEN OF PENNSYLVANIA. *Philadelphia*: E. C. & J. Biddle. 1849.

It is, as might possibly be anticipated from the residence of the author, an elaborate and ardent defence of the separate system of confinement. The charge of its peculiar tendency to induce disease and insanity, is altogether denied, and the testimony of the successive physicians to the Eastern State Penitentiary, during a term of nearly twenty years, goes very satisfactorily to warrant the denial.

The author is not, however, inclined to rest at this, but carries the war into the enemies' camp. The chapter entitled Medical Practice, in a Congregate Prison, is calculated to attract attention, from the positions laid down in it, and their startling illustrations, deduced from the well known case of Abner Rogers. It is not the time or the place for us to enter on this warmly controverted subject, and we have noticed the work only on account of its bearing on the subject of insanity, and as forming a part of its literature.—*Am. Journal of Insanity, published by the Superintendent of the New York Lunatic Asylum, July, 1850.*

So far as the leading controversy, in regard to the rival systems of prison discipline, is concerned, it seems to us to cover the entire ground with singular ability.—*Princeton Review.*

☞ A few copies of this pamphlet are still on hand, and may be had on application to the publishers, corner of Fifth and Minor streets, or to any

member of the Acting Committee.

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☞ Quarterly Meeting of the Society on the 12th of July instant.

ODD NUMBERS SUPPLIED.

There are no full sets of the FIVE volumes of this Journal (already published) on hand, but a large stock of odd volumes and numbers. Many complete copies of Vols. I. and II., can be had, and a few of Vols. IV. and V. If any person has duplicates of Vol. I, No. 1, Vol. II., No. 2, Vol. III., No. 1, Vol. IV., No. 3, or Vol. V., No. 1, they will oblige us by sending them to the office of publication. Copies of Vol. I., No. 4, Vol. II., No. 1, Vol. III., Nos. 3 and 4, Vol. IV., Nos. 1, 2 and 4, and Vol. V., Nos. 2, 3 and 4, will be given in exchange, or supplied to such as want them.

“JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY,”

*Published by the “Philadelphia Society for alleviating the
Miseries of Public Prisons.”*

DESIGN AND PLAN OF THE WORK.

The members of this venerable Institution, which has been mainly instrumental, in introducing the great reform in Prison Discipline that has distinguished the last half century, have long felt the need of such a medium of communication with the public as is now proposed. Their attention has of late been more especially aroused to the importance of the measure, from the deep interest which has been awakened in such reform; and from the misapprehension which prevails, as to the true principles and results of what is termed the “Pennsylvanian,” or “Separate System.”

Of the intrinsic usefulness of a Journal of this nature, it is believed but one opinion can prevail among the intelligent and humane. One of the most active and well-informed of those engaged in the reform of Prisons, has justly remarked, that “judgment is but the result of comparison.” All reasonable men, before deciding on a measure, will acknowledge the importance of becoming acquainted with the history and results of similar efforts. Hence the necessity felt by all civilized nations, of publishing and preserving public documents, reports, discussions, criticisms, &c. In America there is no adequate provision for the preservation of these, so far as they relate to prison reform; they are scattered among an accumulation of pamphlets on other

subjects, are frequently destroyed, and are always difficult of access; and the labour which ought to furnish instruction for our future progress, and for posterity, becomes too often merely temporary in its utility.

At the present time a greatly enhanced importance is attached to a publication of this kind, as a medium of communication with foreign countries. Several of the governments of Europe are endeavouring to ascertain the best system of Prison Discipline, with a view to its adoption; and although the Society have no doubt which of the methods now in existence is the best, some Philanthropists of the Old World are yet undecided.

It is from a knowledge of these facts and from a belief that it is due to themselves and the cause of humanity, that the Society have been induced to undertake this publication.

TERMS.

This periodical is published quarterly; each number to contain at least 48 pages octavo. It will be delivered without charge to members of the Society; but to those who are not members, the price is \$1 per annum, always in advance, or 25 cents a number.

FOOTNOTES:

- [1](#) For example, in the New Jersey State Penitentiary, the plan of which was inspected by the English and French commissioners, the warden's department is in immediate connection with the observatory.
- [2](#) See our April Number, pp. 84, 85.
- [3](#) In those States where it is usual to transfer insane convicts to a Lunatic Asylum, the boon would certainly have been extended to two of our convicts, and thus the institution in which the mental disease originated would not have had to account for its physical termination. This fact should be remembered, when comparing our state of health with similar establishments, as it shows that the Eastern Penitentiary has always had a double mortality to account for, that which is due to it as a penal institution, as well as that which properly belongs to an Insane Asylum.
- [4](#) Published by Acting Committee of the Philadelphia Society.

Transcriber's Note:

Page ii, continuation of paragraph from Page iii joined to start of paragraph.

Page 96, erratum incorporated into text.

Obvious printer errors corrected silently.

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK THE
PENNSYLVANIA JOURNAL OF PRISON DISCIPLINE AND
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